

Trends and Developments in Project Specific Professional Liability



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The Need - Influx of Large Infrastructure Projects, Governmental Entity Requirements

Infrastructure

Growth in certain
economic
segments



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The Challenge (s)



Owner
Preferences
vs. Market
Reality

Historical
Obstacles

Marketplace
Challenges



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Historical Challenges



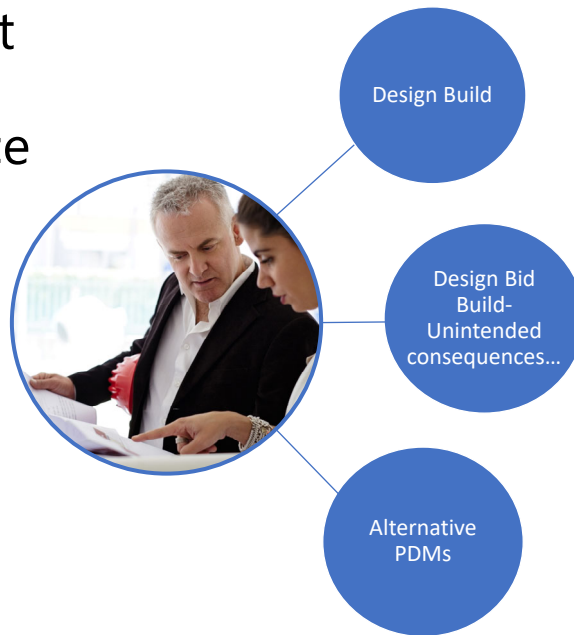
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Marketplace Challenges



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Overview of project delivery method's impact on insurance coverage considerations



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Insurance Structures



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What do risk managers think about all of this?!



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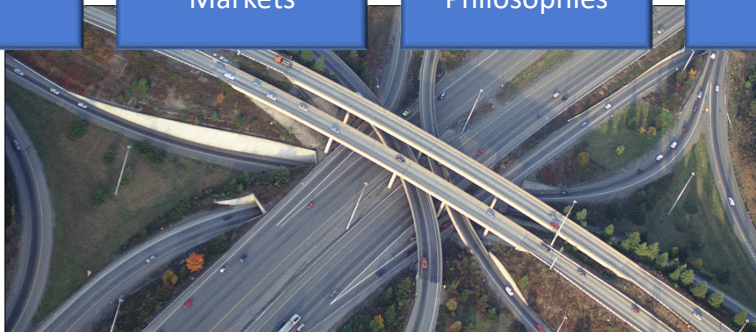
Underwriting Hurdles to Project Specific Professional Liability (PSPL)

Adequacy and
Availability of
Limits

Overlap With
A&E and
Contractors'
Markets

Overview of
Underwriting
Approach /
Philosophies

Underwriting
Considerations



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Placement and Contract Pitfalls



Named Insureds v.
Indemnified
Parties

Standards of Care

Limitations of
Liability

Indemnities

Waiver of
Consequential
Damages

Conflict Resolution
– Arbitration
Clauses



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Thank You!



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